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AS AMENDED

By: Pugh of the Senate

and

Hasenbeck of the House

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[ reading assessments - screening instruments - fund
- training - effective date -
emergency ]
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Section 1210.508C. A. To identify students who have ~~a reading deficiency including identifying students with~~ characteristics of dyslexia that lead to or cause reading difficulty, each student enrolled in kindergarten and first, second, and third grade in a public school in this state shall be screened at the beginning, middle, and end of each school year for reading skills including, but not limited to, phonological awareness, decoding, fluency, vocabulary, and comprehension. A screening instrument approved by the State Board of Education, in consultation with the Commission

1 for Educational Quality and Accountability and the Secretary of
2 Education, shall be utilized for the purposes of this section. In
3 determining which screening instrument to approve, the State Board
4 of Education, the Commission for Educational Quality and
5 Accountability, and the Secretary of Education shall take into
6 consideration at a minimum the following factors:

7 1. The time required to conduct the screening instrument with
8 the intention of minimizing the impact on instructional time;

9 2. The timeliness in reporting screening instrument results to
10 teachers, administrators, and parents and legal guardians of
11 students; and

12 3. The integration of the screening instrument into reading
13 curriculum.

14 B. Beginning in the 2025-2026 school year, the State Board of
15 Education shall approve no fewer than three (3) screening
16 instruments for use at the beginning, middle, and end of the school
17 year for monitoring of progress and for measurement of reading
18 skills as required in subsection A of this section. The screening
19 instruments shall meet the following criteria:

20 1. Assess for phonological awareness, decoding, fluency,
21 vocabulary, and comprehension;

22 2. Document the validity and reliability of each assessment;
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1 3. Can be used for identifying students who are at risk for
2 reading deficiency and progress monitoring throughout the school
3 year;

4 4. Can be used to assess students with disabilities and English
5 language learners; and

6 5. Accompanied by a data management system that provides
7 profiles of students, class, grade level, and school building. The
8 profiles shall identify each student's instructional point of need
9 and reading achievement level. The State Board shall also determine
10 other comparable reading assessments for diagnostic purposes to be
11 used for students at risk of reading failure.

12 C. 1. Exemptions to the screening requirements of this section
13 may be provided to students who have documented evidence that they
14 meet at least one of the following criteria as related to the
15 provision of classroom instruction:

16 a. the student participates in the Oklahoma Alternate
17 Assessment Program (OAAP) and is taught using
18 alternate methods,

19 b. the student's primary expressive or receptive
20 communication is sign language,

21 c. the student's primary form of written or read text is
22 Braille, or

23 d. the student's primary expressive or receptive language
24 is not English, the student is identified as an

English learner using a state-approved identification assessment, and the student has had less than one (1) school year of instruction in an English-learner program.

2. A public school that grants an exemption pursuant to paragraph 1 of this subsection shall provide ongoing evidence of student progression toward English language acquisition with the same frequency as administration of screening assessments. Evidence may include, but not be limited to, student progression toward OAAP reading essential elements, proficiency in sign language and reading comprehension, and proficiency in Braille and reading comprehension.

D. 1. Students who are administered a screening instrument pursuant to subsection A of this section and are found not to be meeting grade-level targets shall be provided a program of reading instruction designed to enable students to acquire the appropriate grade-level reading skills. The program of reading instruction shall be based on scientific reading research and align with the subject matter standards adopted by the State Board of Education. A program of reading instruction shall include:

- a. sufficient additional in-school instructional time for the acquisition of phonological awareness, decoding, fluency, vocabulary, and comprehension,
- b. if necessary and if funding is available, tutorial instruction after regular school hours, on Saturdays,

1 and during summer; however, such instruction may not
2 be counted toward the one-hundred-eighty-day or one-
3 thousand-eighty-hour school year required in Section
4 1-109 of this title,

5 c. assessments identified for diagnostic purposes and
6 periodic monitoring to measure the acquisition of
7 reading skills including, but not limited to,
8 phonological awareness, decoding, fluency, vocabulary,
9 and comprehension, as identified in the student's
10 program of reading instruction,

11 d. high-quality instructional materials grounded in
12 scientifically based reading research, and

13 e. a means of providing every family of a student in
14 prekindergarten, kindergarten, and first, second, and
15 third grade access to free online evidence-based
16 literacy instruction resources to support the
17 student's literacy development at home.

18 2. A student enrolled in kindergarten or first, second, or
19 third grade who exhibits a deficiency in reading at any time based
20 on the screening instrument administered pursuant to subsection A of
21 this section shall receive an individual reading intervention plan
22 no later than thirty (30) days after the identification of the
23 deficiency in reading. The reading intervention plan shall be
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1 provided in addition to core reading instruction that is provided to
2 all students. The reading intervention plan shall:

- 3 a. describe the research-based reading intervention
4 services the student will receive to remedy the
5 deficiency in reading,
- 6 b. provide explicit and systematic instruction in
7 phonological awareness, decoding, fluency, vocabulary,
8 and comprehension, as applicable,
- 9 c. monitor the reading progress of each student's reading
10 skills throughout the school year and adjust
11 instruction according to the student's needs, and
- 12 d. continue until the student is determined to be meeting
13 grade-level targets in reading based on screening
14 instruments administered pursuant to subsection A of
15 this section or assessments identified for diagnostic
16 purposes and periodic monitoring pursuant to
17 subparagraph c of paragraph 1 of this subsection.

18 3. The reading intervention plan for each student identified
19 with a deficiency in reading shall be developed by a Student Reading
20 Proficiency Team and shall include supplemental instructional
21 services and supports. Each team shall be composed of:

- 22 a. the parent or legal guardian of the student,
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- b. the teacher assigned to the student who had responsibility for reading instruction in that academic year,
- c. a teacher who is responsible for reading instruction and is assigned to teach in the next grade level of the student, and
- d. a certified reading specialist, if one is available.

4. A school district shall notify the parent or legal guardian of any student in kindergarten or first, second, or third grade who exhibits a deficiency in reading at any time based on the screening instrument administered pursuant to subsection A of this section. The notification shall occur no later than thirty (30) days after the identification of the deficiency in reading.

E. 1. Every school district shall adopt and implement a district strong readers plan which has had input from school administrators, teachers, and parents and legal guardians and if possible a reading specialist, and which shall be submitted electronically to and approved by the State Board of Education. The plan shall be updated annually. School districts shall not be required to electronically submit the annual updates to the Board if the last plan submitted to the Board was approved and expenditures for the program include only expenses relating to individual and small group tutoring, purchase of and training in the use of screening and assessment measures, summer school programs, and

1 Saturday school programs. If any expenditure for the program is
2 deleted or changed or any other type of expenditure for the program
3 is implemented, the school district shall be required to submit the
4 latest annual update to the Board for approval. The district strong
5 readers plan shall include a plan for each site which includes an
6 analysis of the data provided by the Oklahoma School Testing Program
7 and other reading assessments utilized as required in this section,
8 and which outlines how each school site will comply with the
9 provisions of the Strong Readers Act.

10 2. The State Board of Education shall adopt rules for the
11 implementation and evaluation of the provisions of the Strong
12 Readers Act. The evaluation shall include, but not be limited to,
13 an analysis of the data required in subsection L of this section.

14 F. 1. Any first-grade, second-grade, or third-grade student
15 who demonstrates proficiency in reading through a grade-level
16 appropriate screening instrument approved pursuant to subsection B
17 of this section shall not require a program of reading instruction
18 or an individual reading intervention plan. After a student has
19 demonstrated proficiency through a screening instrument, the
20 district shall provide notification to the parent or legal guardian
21 of the student that he or she has satisfied the requirements of the
22 Strong Readers Act. The district shall continue to monitor the
23 student in the next successive grade level to ensure he or she
24 maintains proficiency.

1 2. Beginning with the 2025-2026 school year, if a third-grade
2 student is identified at any point of the academic year as having a
3 significant reading deficiency, which shall be defined as not
4 meeting grade-level targets on a screening instrument administered
5 pursuant to subsection A of this section, the district shall provide
6 the student with intensive intervention services for the appropriate
7 amount of the instructional day consistent with the individual
8 reading intervention plan developed pursuant to paragraph 2 of
9 subsection D of this section and as determined by the Student
10 Reading Proficiency Team. Intensive intervention services shall
11 continue until the student demonstrates proficiency at his or her
12 grade level based on a screening instrument administered pursuant to
13 subsection A of this section.

14 G. Each school district shall annually report in an electronic
15 format to the State Department of Education, the Office of
16 Educational Quality and Accountability, and the Secretary of
17 Education the number of students in kindergarten through third grade
18 per grade level who exhibit grade-level reading proficiency, the
19 number of students per grade level who received intensive
20 intervention services pursuant to paragraph 2 of subsection F of
21 this section, the number of students per grade level who attended a
22 summer academy as provided for in Section 1210.508E of this title,
23 the number of students per grade level who exhibited improved
24 reading proficiency after completion of intensive intervention

1 services, and the number of students per grade level who are still
2 in need of intensive intervention services. The State Department of
3 Education shall publicly report the aggregate and district-specific
4 numbers submitted pursuant to this subsection on its website and
5 shall provide electronic copies of the report to the Governor,
6 Secretary of Education, President Pro Tempore of the Senate, Speaker
7 of the House of Representatives, and to the respective chairs of the
8 committees with responsibility for common education policy in each
9 legislative chamber.

10 H. The parent of any student who is found to have a reading
11 deficiency and is not meeting grade-level reading targets and has
12 been provided a program of reading instruction as provided for in
13 paragraph 1 of subsection D of this section shall be notified in
14 writing of the following:

15 1. That the student has been identified as having a substantial
16 deficiency in reading;

17 2. A description of the current services that are provided to
18 the student pursuant to subsection D of this section;

19 3. A description of the proposed intensive intervention
20 services and supports that will be provided to the student that are
21 designed to remediate the identified area of reading deficiency as
22 provided for in paragraph 2 of subsection F of this section;

23 4. That a student who is promoted to the fourth grade shall
24 receive supplemental intensive intervention services;

1 5. Strategies for parents to use in helping their child succeed
2 in reading proficiency; and

3 6. The grade-level performance scores of the student.

4 I. No student may be assigned to a grade level based solely on
5 age or other factors that constitute social promotion.

6 J. 1. Each school district board of education shall annually
7 publish on the school website and report electronically to the State
8 Department of Education, the Office of Educational Quality and
9 Accountability, and the Secretary of Education by September 1 of
10 each year the following information on the prior school year:

11 a. the policies and procedures adopted by the school
12 district board of education to implement the
13 provisions of this section. The information submitted
14 shall include expenditures related to implementing the
15 provisions of this section, the number of staff
16 implementing the provisions of this section, and
17 average daily classroom time devoted to implementing
18 the provisions of this section,

19 b. by grade, the number and percentage of all students in
20 kindergarten through third grade who did not meet
21 grade-level targets based on a screening instrument
22 administered pursuant to subsection A of this section,
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- 1 c. by grade, the number and percentage of all students in
2 kindergarten through third grade who have been
3 enrolled in the district for fewer than two (2) years,
4 d. by grade, the number and percentage of students in
5 kindergarten through third grade who demonstrated
6 grade-level proficiency based on a screening
7 instrument administered pursuant to subsection A of
8 this section, and
9 e. by grade, the number and percentage of students in
10 kindergarten through third grade who are on an
11 individualized education program (IEP) in accordance
12 with the Individuals with Disabilities Education Act
13 (IDEA) and who demonstrated grade-level proficiency
14 based on a screening instrument administered pursuant
15 to subsection A of this section or an alternative
16 assessment prescribed by the student's IEP.

17 2. The State Department of Education shall establish a uniform
18 format for school districts to report the information required in
19 this subsection. The format shall be developed with input from
20 school districts and shall be provided not later than ninety (90)
21 days prior to the annual due date. The Department shall annually
22 compile the information required, along with state-level summary
23 information, and electronically report the information to the
24 public, the Governor, the Secretary of Education, the President Pro

1 Tempore of the Senate, and the Speaker of the House of
2 Representatives.

3 K. The State Department of Education shall provide technical
4 assistance as needed to aid school districts in administering the
5 provisions of the Strong Readers Act.

6 L. On or before January 31 of each year, the State Department
7 of Education shall electronically submit to the Governor, the
8 President Pro Tempore of the Senate, the Speaker of the House of
9 Representatives, and members of the committees with responsibility
10 over common education in both houses of the Legislature a Strong
11 Readers Report which shall include, but is not limited to, trend
12 data detailing three (3) years of data, disaggregated by student
13 subgroups to include economically disadvantaged, major racial or
14 ethnic groups, students with disabilities, and English language
15 learners, as appropriate for the following:

16 1. The statewide aggregate number and percentage of students in
17 kindergarten through third grade determined to be at risk for
18 reading difficulties compared to the total number of students
19 enrolled in each grade;

20 2. The statewide aggregate number and percentage of students in
21 kindergarten who continue to be at risk for reading difficulties as
22 determined by the year-end administration of the screening
23 instrument required subsection A of this section;

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1 3. The statewide aggregate number and percentage of students in
2 kindergarten through third grade who have successfully completed
3 their program of reading instruction and are reading on grade level
4 as determined by the results of screening instruments administered
5 pursuant to subsection A of this section;

6 4. The statewide aggregate and district-specific number and
7 percentage of students that meet or do not meet grade-level targets
8 for reading based on screening instruments administered pursuant to
9 subsection A of this section;

10 5. The amount of funds received by each district for
11 implementation of the Strong Readers Act;

12 6. An evaluation and narrative interpretation of the report
13 data analyzing the impact of the Strong Readers Act on students'
14 ability to read at grade level;

15 7. The type of reading instruction practices and methods
16 currently being used by school districts in the state;

17 8. Socioeconomic information, access to reading resources
18 outside of school, and screening for and identification of learning
19 disabilities for students not reading at the appropriate grade level
20 in kindergarten and first through third grade;

21 9. By grade level, the types of intensive intervention efforts
22 being conducted by school districts for students who are not on an
23 IEP and who are not reading at the appropriate grade level and for
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1 students who are on an IEP and who are not reading at the
2 appropriate grade level; and

3 10. Any recommendations for improvements or amendments to the
4 Strong Readers Act.

5 The State Department of Education may contract with an
6 independent entity for the reporting and analysis requirements of
7 this subsection.

8 M. Copies of the results of the screening instruments
9 administered pursuant to subsection A of this section shall be made
10 a part of the permanent record of each student.

11 SECTION 2. AMENDATORY Section 1, Chapter 411, O.S.L.
12 2024 (70 O.S. Supp. 2024, Section 1210.508I), is amended to read as
13 follows:

14 Section 1210.508I. A. There is hereby created in the State
15 Treasury a revolving fund for the Oklahoma State Regents for Higher
16 Education to be designated the "Statewide Literacy Revolving Fund".
17 The fund shall be a continuing fund, not subject to fiscal year
18 limitations, and shall consist of all monies received by the State
19 Regents from state appropriations provided for the purpose of
20 implementing the provisions of subsection B of this section. All
21 monies accruing to the credit of the fund are hereby appropriated
22 and may be budgeted and expended by the State Regents for the
23 purpose provided for in this subsection. Expenditures from the fund
24 shall be made upon warrants issued by the State Treasurer against

1 claims filed as prescribed by law with the Director of the Office of
2 Management and Enterprise Services for approval and payment.

3 B. Subject to the availability of funding, the Oklahoma State
4 Regents for Higher Education shall utilize the Statewide Literacy
5 Revolving Fund created in subsection A of this section to:

6 1. Implement training in the science of reading in early
7 childhood education, elementary education, and special education
8 teacher preparation programs accredited by the Commission for
9 Educational Quality and Accountability. For the purposes of this
10 section, training in the science of reading includes providing
11 explicit and systematic instruction in phonological awareness,
12 decoding, fluency, vocabulary, and comprehension and implementing
13 reading strategies that research has shown to be successful in
14 improving reading among students with reading difficulties.

15 Beginning with students entering ~~a~~ an early childhood education,
16 elementary education, or special education teacher preparation
17 program accredited by the Commission for Educational Quality and
18 Accountability in the 2025-2026 academic year, completion of
19 training required by this paragraph shall lead to a micro-credential
20 in the science of reading which shall be reflected on teaching
21 certificates awarded to such individuals; and

22 2. Support teacher preparation programs accredited by the
23 Commission for Educational Quality and Accountability in developing
24 and implementing a micro-credential in the science of reading for

1 certified teachers employed by school districts and charter schools
2 in this state. A micro-credential awarded pursuant to this
3 paragraph shall be reflected on a teacher's certificate to teach.

4 SECTION 3. This act shall become effective July 1, 2025.

5 SECTION 4. It being immediately necessary for the preservation
6 of the public peace, health, or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

9 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
10 March 4, 2025 - DO PASS AS AMENDED
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